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DELAWARE STATE SENATE
153rd GENERAL ASSEMBLY

SENATE BILL NO. 69

AN ACT TO AMEND TITLE 14 OF THE DELAWARE CODE RELATING TO FOODS AND BEVERAGES IN SCHOOLS.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

1 Section 1. Amend Subchapter I, Chapter 41, Title 14 of the Delaware Code by making deletions as shown by
2 strike through and insertions as shown by underline as follows:

3 § 4137B. Red dye 40 prohibited; school foods and beverages.

4 (a) For purposes of this section:

5 (1) "Breakfast" means as defined in 7 C.F.R. § 220.2.

6 (2) "Campus" means areas of the property under the jurisdiction of a school district or charter school that are
7 accessible to students during the school day.

8 (3) "Competitive food" means all foods and beverages other than meals reimbursed under programs
9 authorized by the Richard B. Russell National School Lunch Act, 42 U.S.C. § 1751 et seq., and the Child Nutrition Act
10 of 1966, 42 U.S.C. § 1771 et seq., available for sale through the school nutrition programs to students on campus
11 during the school day.

12 (4) "Department" means the Department of Education.

13 (5) "Lunch" means as defined in 7 C.F.R. § 210.2.

14 (6) "School day" means the period from the midnight before, to 30 minutes after, the end of the official school
15 day.

16 (b) A school district or charter school may not sell or serve breakfast, lunch, or competitive food on campus during
17 the school day that contains Red dye 40 (CAS no. 25956-17-6).

18 (c) The Department may adopt rules or promulgate regulations to implement this section.

19 Section 2. This Act is effective immediately and is to be implemented beginning July 1, 2026.

SYNOPSIS

This Act prohibits a school district or charter school from selling or serving breakfast, lunch, or competitive food on campus during the school day that contains the color additive Red dye 40 (CAS no. 25956-17-6). Competitive foods are sold through the school nutrition programs, and include items sold in vending machines on campus or served a la carte.

Red dye 40 (CAS no. 25956-17-6) is a synthetic food coloring derived from petroleum. It is found in food products such as cereal, beverages, gelatins, puddings, popsicles, chips, dairy products, and confections. Red dye 40 is used solely to enhance the appearance of food and does not provide any nutritional value.

Consumption of Red dye 40 has been associated with hyperactivity, aggression, and other neurobehavioral problems in some children. Red dye 40 may also be linked with migraines and learning difficulties. The European Union requires a warning label to be placed on food products with Red dye 40, stating that it “may have an adverse effect on activity and attention in children”.

California became the first state to pass a prohibition on the provision of and sale of foods in schools that contain Red dye 40. Presently, at least 6 other states have introduced legislation to prohibit Red dye 40 in schools.

This Act is effective immediately and is to be implemented beginning July 1, 2026. The Department of Education and local education agencies will use the period leading up to the implementation date as a planning and preparation year.

Author: Senator Buckson